

1. The Motion for Fees and Costs is GRANTED.
2. The Court will issue the order after hearing.

8. 9:00 AM CASE NUMBER: C25-00144

CASE NAME: YONGCHAN PARK VS. MICHAEL YANG

*HEARING ON MOTION IN RE: TO AMEND PLEADINGS TO ADD DEFENDANT EUNSOOK YANG - ADV.
TO 3/30/26 PER STIP & ORDER SUBMITTED 3/2/26

FILED BY: YANG, MICHAEL

TENTATIVE RULING:

Before the Court is Defendant Michael Yang and Minhe, Inc. (collectively, “Defendants”)’s “Motion to Amend Pleadings to add Defendant Eunsook Yang.” The Motion is opposed by Plaintiff Yongchan Park and Plaintiff Jihoon You (collectively, “Plaintiffs”).

The procedural vehicle by which Defendants bring their motion is unclear. The Defendants’ Notice does not identify a California Rule of Court or Civil Procedure. The Memorandum of Points and Authorities references Code of Civil Procedure section 473(a), which governs the amendment of pleadings.

For the following reasons, the Motion is **DENIED**.

Analysis

This case is an appeal of the Labor Commissioner’s ruling in WC-CM-761270, WC-CM-76127, and WC-CM-762296 pursuant to Labor Code section 98.2(a) by Defendants. (Labor Code § 98.2 [“[P]arties may seek review by filing an appeal to the superior court, where the appeal shall be heard de novo”].)

When an employer fails to pay wages owed to an employee, the employee may either: (1) file an original civil action directly in court, or (2) seek administrative relief with the Labor Commissioner under the Berman statutes. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 121 (*OTO*); see also *ZB, N.A. v. Superior Court* (2019) 8 Cal.5th 175, 186.) If the employee elects the latter, the Labor Commissioner may accept the matter and conduct a Berman hearing, prosecute a civil action for collection of wages, or take no further action on the complaint. (Labor Code § 98, subd. (a); *Murphy v. Kenneth Cole Productions, Inc.* (2007) 40 Cal.4th 1094, 1115 (*Murphy*).) Before conducting the hearing or pursuing a civil action, the commissioner’s staff may attempt to settle the claims informally or through a conference between the parties. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1128 (*Sonic*).)

If the Labor Commissioner decides to accept the matter and conduct a hearing, the hearing must be conducted within 90 days and a decision rendered within 15 days thereafter. (*Sonic, supra*, 57 Cal.4th at p. 1128.) The Berman hearing procedure is designed to provide a speedy, informal, and affordable method of resolving wage claims. (*Ibid.*) The hearing officer is authorized to assist the parties in cross-examining witnesses and to explain issues and terms not understood by the parties. (*Ibid.*) The hearings are not governed by the technical rules of evidence, and any relevant evidence is admitted if it is the sort of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs. (*Ibid.*) After a judgment is entered, the Labor Commissioner is charged with the responsibility of enforcing the judgment and making reasonable efforts to have it satisfied. (*Id.* at pp. 1128–1129.)

Once the Labor Commissioner has issued a decision after a Berman hearing, either party may “appeal” the decision to the superior court, which reviews the claim de novo. (Labor Code § 98.2, subd. (a).) Although denoted as an “appeal,” the trial de novo “is neither a conventional appeal nor review of the Labor Commissioner’s decision, but is rather a de novo trial of the wage dispute.” (*Murphy, supra*, 40 Cal.4th at p. 1116.) The superior court has discretion to permit the employee to assert additional related wage claims beyond those asserted before the Labor Commissioner. (*Id.* at pp. 1116–1120.) “The decision of the commissioner is ‘entitled to no weight whatsoever, and the proceedings are truly “a trial anew in the fullest sense.”’” (*Post v. Palo/Haklar & Associates* (2000) 23 Cal.4th 942, 948.)

The de novo proceeding in the superior court is initiated by filing an “appeal” and paying a first paper filing fee. (Lab. Code, § 98.2, subd. (a); see Gov. Code, § 70611.) Thus begins a civil “action” that culminates in “a full new trial in the superior court according to the rules and procedures applicable.” (*Sales Dimensions v. Superior Court* (1979) 90 Cal.App.3d 757, 762, quoting *Buchwald v. Katz* (1972) 8 Cal.3d 493, 502.) The superior court “hears the matter, not as an appellate court, but as a court of original jurisdiction, with full power to hear and determine it as if it had never been before the labor commissioner.” (*Murphy, supra*, 40 Cal.4th at pp. 1116–1117.) In fact, “the appeal of the commissioner’s decision to the superior court ... nullifies the decision, and the superior court conducts a new trial of the wage dispute.” (*Arias v. Kardoulias* (2012) 207 Cal.App.4th 1429, 1435.)

Such a de novo proceeding in superior court falls within the definition of an “action” or “civil action.” (See Code Civ. Proc., § 22 [defining “action” as “an ordinary proceeding in a court of justice by which one party prosecutes another for the declaration, enforcement, or protection of a right, the redress or prevention of a wrong, or the punishment of a public offense”]; *id.*, § 30 [defining “civil action” as one “prosecuted by one party against another for the declaration, enforcement or protection of a right, or the redress or prevention of a wrong”].)

Defendants argue that “[t]he ‘appeal by a DLSE defendant is functionally equivalent to a Superior Court ‘Answer’ filed by that defendant.” (Motion at 4:2-3.) In support, Defendants rely on their own counsel’s declaration and the proposed Notices of Appeal. Nowhere do Defendants cite to any authority that permits the Court to treat a Notice of Appeal as a pleading subject to Code of Civil Procedure section 473(a). And even if it were, the Court does not find any basis to add a supposed defendant that was not a party to the underlying matter appealed.

Because the Court concludes that the Notice of Appeal is not an Answer within the meaning of the California Code of Civil Procedure, it need not reach Plaintiffs’ arguments that they would be prejudiced by the amendment.

The motion is **DENIED**.

9. 9:00 AM CASE NUMBER: C25-00756
CASE NAME: JINLINAG LI VS. SNORKEL AI INC.
HEARING IN RE: JOINDER TO HIREART INC.'S MOTION TO COMPEL ARBITRATION
FILED BY: SNORKEL AI INC.
TENTATIVE RULING:

See Line 10.